

File No.: EXP202213798

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for the Protection of Data and based on the following:

FACTS

FIRST: On 24/11/2022, a complaint was filed by A.A.A. (hereinafter A.A.A.) with the Spanish Agency for the Protection of Data against the official Mercedes-Benz car dealer, AUTOMÓVILES LOUZAO SLU, with NIF B15027089 (hereinafter, the LOUZAO party). The reasons for the complaint are as follows:

A.A.A. states that he is the sole owner of a “Mercedes” brand vehicle and “has a security system installed that allows it to be linked to a Mercedes user account, associated with the owner in order to know each of the movements made by the vehicle.”

“The purpose of this application is to communicate the vehicle’s status to its owner at all times. To access the system, it is necessary to enter the application called ‘Mercedes me app.’”

A.A.A. indicates that on 26/07/2022, he received an email from MERCEDES, informing him that his vehicle had been “disassociated from his account on the app.”

A.A.A. provides in DOCUMENT 3 a copy of the email received from the domain @mercedes.me, which states:

- “Your vehicle... chassis number... has been disassociated from your Mercedes me user account. Therefore, you can no longer continue using the Mercedes me connect services you selected for this vehicle...”

A.A.A. states that he contacted MERCEDES BENZ ESPAÑA (MBE hereinafter), as he had not requested such disassociation.

The complainant concludes that access has been granted to a third party to a data area that should be restricted to customers of the contracted and acquired service, which should be duly protected, and that the disassociation violates data protection and “has generated a security breach that has allowed the vehicle to currently be in the hands of a non-owner third party.”

The complainant also requests compensation for damages caused.

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of 5/12, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded on 9/01/2023 to MERCEDES BENZ ESPAÑA SAU (MBE) for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 9/01/2023, as evidenced by the acknowledgment of receipt in the file.

On 6/02/2023, a response letter was received by this Agency.

THIRD: On 24/02/2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The complaint was resolved with the filing of the complaint on 27/02/2023, as no infringing action by the complained party was inferred within the jurisdiction of the Spanish Agency for the Protection of Data.

On 28/03/2023, the complainant filed a voluntary appeal for reconsideration, RR/211/2023.

The Director of the Spanish Agency for the Protection of Data resolved on 8/09/2023 to uphold the reconsideration appeal filed, so that it may continue its processing.

FIFTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions AI/00304/2023 to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 and 2 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for the Protection of Data is competent to resolve these investigation proceedings.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Investigation Actions

Article 67 of the LOPDGDD, in its wording in force at the time the complaint was admitted for processing, establishes the following regarding preliminary investigation actions:

"1. Before the adoption of the agreement to initiate the procedure, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigation actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure."

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments involving massive traffic of personal data.

2. The preliminary investigation actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the agreement of admission for processing or from the date of the agreement by which its initiation is decided when the Spanish Agency for Data Protection acts on its own initiative or as a result of the communication that has been sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

III

Expiration of Preliminary Investigation Actions

In relation to the preliminary actions, the Regulation for the Development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of 21/12, in force in all that does not contradict, oppose or prove incompatible with the provisions of the RGPD and the LOPDGDD, in its Article 122.4 states that "The expiration of the term without an agreement to initiate sanctioning proceedings having been issued and notified will result in the expiration of the preliminary actions."

According to the provisions of the transcribed articles, the preliminary actions must be understood as expired if, more than twelve months have passed from the date of admission for processing of the complaint, and no agreement to initiate sanctioning proceedings has been issued and notified.

In this case, the agreement of admission for processing of the complaint took place on 24/02/2023, so the aforementioned preliminary actions must be declared expired.

Regarding the effects of expiration, Article 95.3 of the LPCAP determines:

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“Expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had expiration not occurred may be incorporated into it. In any case, in the new procedure, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed.

Therefore, in accordance with the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigation actions.

SECOND: TO NOTIFY this resolution to AUTOMÓVILES LOUZAO SL UNIPERSONAL, to MERCEDES-BENZ ESPAÑA, S.A.U., and to the complainant.

Against this resolution, which concludes the administrative procedure according to the provisions of Article 114.1.c) of the LPACAP, and in accordance with the provisions of Articles 112 and 123 of the aforementioned LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of 13/07, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

907-120624

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the position of Presidency and Deputy Presidency

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